

## **PERSONAL TRAVEL BOOKING FACILITY AGREEMENT**

This Personal Travel Booking Facility Agreement (“the Agreement”) is entered into between:

Gemini Moon Trading 7 (Pty) Ltd t/a XL Nexus Travel (“the Company”)

and

(Employee Full Name & ID Number) (“the Employee”).

---

Employee Physical Address: \_\_\_\_\_

### **D1. PURPOSE AND NATURE OF FACILITY**

D1.1 The Company may, at its sole and absolute discretion, grant certain eligible employees access to a Personal Travel Booking Facility (“the Facility”).

D1.2 The Facility is a discretionary employment-linked benefit and does not constitute a loan, credit agreement, or guaranteed entitlement.

D1.3 The granting of the Facility is subject to approval by the Directors.

D1.4 The facility is capped to a total amount of 2 times the employees monthly basic salary. Any deviation from this limit is subject to and at the sole discretion of the Directors.

D1.5 The Employee confirms that their line manager has been informed of the intention to apply for the Facility prior to submission of the request and shall be informed of the outcome thereafter.

D1.6 The Employee consents to the Company processing their personal information for purposes of administering this Agreement, enforcing its terms, and pursuing lawful recovery where necessary, in accordance with applicable legislation, including the Protection of Personal Information Act.

D1.7 This Agreement constitutes the entire agreement between the parties regarding the subject matter herein and supersedes any prior discussions, representations, or understandings, whether written or oral.

D1.8 No amendment, variation, or waiver of any provision of this Agreement shall be valid unless recorded in writing and signed by both parties.

D1.9 This Facility does not constitute a credit agreement as contemplated in the National Credit Act.

## D2. FACILITY DETAILS

Description of Booking / Reference:

---

Total Facility Amount: R \_\_\_\_\_

Departure Date: \_\_\_\_\_

Repayment Period (not exceeding 12 months): \_\_\_\_\_ months

Monthly Deduction Amount: R \_\_\_\_\_

## D3. REPAYMENT TERMS

D3.1 The Employee acknowledges that the Facility amount constitutes an advance of value extended in connection with personal travel. \_\_\_\_\_

D3.2 Repayment shall be effected via monthly payroll deductions over the agreed period on an interest-free basis. \_\_\_\_\_

D3.3 No repayment period may exceed twelve (12) months. \_\_\_\_\_

D3.4 The Employee hereby provides written consent in terms of section 34 of the Basic Conditions of Employment Act for the agreed payroll deductions. \_\_\_\_\_

D3.5 Deductions shall not reduce remuneration below statutory thresholds. \_\_\_\_\_

D3.6 A certificate signed by a Director or authorised Finance representative of the Company reflecting the amount outstanding shall constitute prima facie proof of the indebtedness and the amount due, unless the contrary is proven. \_\_\_\_\_

D3.7 The Employee acknowledges that the debt recorded in this Agreement constitutes a valid, liquid, and enforceable obligation. \_\_\_\_\_

## D4. INCENTIVE SET-OFF RULE

D4.1 Where the Employee qualifies for any discretionary incentive, bonus, profit share, or similar performance-based payment while an outstanding balance exists, the Company may allocate up to fifty percent (50%) of such payment toward the outstanding balance. \_\_\_\_\_

D4.2 Where multiple debts exist, the allocation shall be applied to the oldest outstanding debt first. \_\_\_\_\_

D4.3 The Employee consents to such allocation subject to lawful deduction requirements. \_\_\_\_\_

## D5. NO FURTHER FACILITY WHILE OUTSTANDING

D5.1 The Employee may not apply for or receive any further personal travel booking facility or staff travel benefit while any outstanding balance remains. \_\_\_\_\_

## **D6. REPAYMENT COMMENCEMENT AND DEDUCTION AUTHORITY**

D6.1 Repayment of the Personal Travel Booking Facility shall commence in the payroll month immediately following the date of written approval by the Directors, unless otherwise agreed in writing. \_\_\_\_\_

D6.2 Repayment obligations are not linked to the travel departure date. The Employee acknowledges that the financial obligation arises upon approval of the facility and not upon travel. \_\_\_\_\_

D6.3 The Employee expressly authorises the Company, in terms of section 34 of the Basic Conditions of Employment Act, to deduct the agreed instalments from remuneration due to the Employee each month until the full outstanding amount has been settled. \_\_\_\_\_

D6.4 The Employee acknowledges that this written agreement constitutes specific, prior, and voluntary consent to payroll deductions for the purposes of section 34 of the Basic Conditions of Employment Act. \_\_\_\_\_

D6.5 Where an incentive becomes payable while any balance remains outstanding, fifty percent (50%) of such incentive shall automatically be allocated to reduce the outstanding balance, with allocation applied to the oldest outstanding debt first. \_\_\_\_\_

D6.6 The Company reserves the right to accelerate repayment or revise instalment structures where: \_\_\_\_\_

- (a) employment is terminated;
- (b) the Employee breaches this Agreement;
- (c) material financial risk to the Company arises.

## **D7. TERMINATION OF EMPLOYMENT**

D7.1 Upon resignation or termination of employment for any reason, any outstanding balance becomes immediately due and payable. \_\_\_\_\_

D7.2 The Employee authorises the Company to deduct any outstanding balance from final remuneration, subject to section 34 of the BCEA. \_\_\_\_\_

D7.3 Where final remuneration is insufficient to settle the debt in full, the Employee agrees to enter into a Settlement Agreement Upon Termination. \_\_\_\_\_

D7.4 Failure to settle the outstanding balance may result in lawful recovery proceedings. \_\_\_\_\_

D7.5 In the event of breach or default by the Employee requiring legal or formal recovery action by the Company, the Employee shall be liable for all reasonable legal costs incurred on an attorney-and-client scale, including collection and tracing fees, to the extent permitted by law. \_\_\_\_\_

## **D8. DEFAULT**

D8.1 The Employee shall be in default if: \_\_\_\_\_

- a) any repayment is missed without lawful cause;
- b) employment terminates prior to full settlement;
- c) the Employee withdraws consent unlawfully;
- d) false information was provided in support of the application.

D8.2 Upon default, the Company may accelerate recovery of the outstanding balance. \_\_\_\_\_

## **D9. DOMICILIUM AND NOTICES**

D9.1 The Employee chooses the residential address and email address provided in this Agreement as their domicilium citandi et executandi for all purposes arising from this Agreement.

D9.2 Any notice or demand sent to such address or email shall be deemed to have been received:

- (a) on the date of delivery if delivered by hand;
- (b) three (3) business days after posting by registered mail; or
- (c) on the date of transmission if sent by email.

D9.3 The Employee undertakes to notify the Company in writing of any change of address or email.

## **D10. DISCRETION AND NO ENTITLEMENT**

D10.1 Approval of one Facility does not create any precedent, entitlement, or expectation of future approval.

D10.2 The Company reserves the right to amend or withdraw the Facility framework in line with business sustainability.

## **D11. GOVERNING LAW**

D11.1 This Agreement shall be governed by the laws of the Republic of South Africa, and the parties consent to the jurisdiction of the Magistrates Court having jurisdiction, notwithstanding that the amount claimed may exceed the normal jurisdiction of such court.

## D12. ACKNOWLEDGEMENT

The Employee confirms that:

- The Facility is discretionary and not guaranteed. \_\_\_\_\_
- The repayment terms are understood. \_\_\_\_\_
- Written consent is provided in terms of section 34 of the BCEA. \_\_\_\_\_
- The Agreement is signed voluntarily. \_\_\_\_\_

Signed at \_\_\_\_\_ on this \_\_\_\_\_ day of \_\_\_\_\_ 20\_\_\_\_.

**For the Company:**

Name: \_\_\_\_\_

Title: \_\_\_\_\_

Signature: \_\_\_\_\_

**Employee:**

Name: \_\_\_\_\_

Signature: \_\_\_\_\_